2-3 Utilization and Disclosure of Information

Point!

Utilization and Disclosure of Information

(1) Purpose of Copyright
A copyright aims to contribute to cultural development by ensuring the ([1]**fair use**) of copyrighted works and the ([2]**protection of rights**).

(2) Exceptions
Under the purpose of copyright, there are exceptions where the copyright can be limited to allow use without obtaining permission from the copyright holder.
<Example> Reproduction for private use, reproduction within educational institutions, non-profit performances, etc.

(3) ([3]**Quotation**) : The act of using a portion of another person's copyrighted work in your own copyrighted work.
If certain requirements are met, portions of a copyrighted work can be quoted without obtaining permission from the author.
<Quotation Methods and Rules>
[1] Your own copyrighted work takes precedence, while the quoted work is subordinate.
(Your own copyrighted work is the subject.)
[2] There must be a necessity to engage in quotation.
[3] Ensure that the quoted material is clearly identifiable by enclosing it in quotation marks.
[4] The source is clearly specified.
[5] Do not alter the quoted material.

(4) Setting the duration of protection : The economic rights of the author expire ([4]**50**) years after the death of the creator.

(5) ([5]**Creative Commons License**) (CC License) : A mark indicating the conditions for using copyrighted works.
<Types of Creative Commons Licenses>

Mark	Condition	Content
	([6]**Credit to creator**) (BY)	Display the title of the work and name of the creator.
	([7]**Non-commercial**) (NC)	Do not use for ([8]**commercial**) purposes.
	([9]**No derivatives**) (ND)	Do not alter the original copyrighted work.
	([10]**Same terms for adaptations**) (SA)	Publish under the same combination of licenses as the original work.

Warm Up

Answer the following questions.

(1) Choose all statements that allow for the use of copyrighted works without permission as an exception from the options **A** to **D** below, and answer using the letters.

A I copied the materials and distributed them to students in my social studies class.

B I copied commercially available music CDs and distributed them to friends.

C We charged an admission fee and performed a K-pop medley at our band's regular concert.

D I quoted a section of a book when writing a report.

(2) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A Even when quoting, it is always necessary to obtain permission from the creator.

B There is a necessity to quote, and the portion being cited is subordinate.

C Clearly indicate the quoted material by enclosing it in quotation marks.

D Regardless of the reason, you must not modify the material you are quoting.

(3) When publishing a photo you took on a web page, you want to allow others to use it on the conditions that "the name of the photographer and the title of the work are displayed" and "the work is not altered." At this time, choose all the Creative Commons licenses that should be displayed in combination from the options **A** to **D** below, and answer using the letters.

A 

B 

C 

D 

Explanation

(1) **A** The use of copyrighted works in the course of teaching falls under reproduction in educational institutions and works can therefore be utilized without obtaining permission from the copyright holder.

B Copying commercially available CDs and distributing them to friends does not qualify as reproduction for personal use and constitutes copyright infringement.

C Since an admission fee is charged and the usage does not fall under the condition of a performance not for profit, this usage constitutes a copyright infringement.

D In the case of quotation, a copyrighted work can be used in one's own creation without obtaining permission from the creator of the other work.

Therefore, **A** and **D**

(2) **B**, **C**, **D**

(3) **A** represents display, **B** represents non-commercial, **C** represents no derivative works, and **D** represents same terms for adaptations.

Therefore, **A** and **C**

Try

Answer the following questions.

(1) Insert the appropriate terms in blanks [1] and [2] to complete the following sentence.

> A copyright aims to contribute to cultural development by ensuring the ([1]) of copyrighted works and the ([2]) .

(2) For each of the following statements **A** to **D**, mark "○" if the statement does not constitute copyright infringement, and "×" if it is infringement.

A The sheet music for a regular concert was copied and distributed to all members of the wind orchestra.

B At a school cultural festival, the drama club performed a play using a script selected from a collection of commercially-available scripts.

C A Spanish work written by a Spanish person was translated into Arabic and published without obtaining permission from the copyright holder, as the languages were different.

D In a report assigned for class, a student cited a portion of statistical data from a web page.

(3) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A Even in the case of a quotation, permission from the copyright holder must always be obtained.

B Clearly indicate quotes through measures such as enclosing the quoted materials in quotation marks.

C If the quoted material is clearly distinguished, it is not necessary cite the source from which the quoted material was taken.

D Quoted texts must not be altered, regardless of one's own argument.

(4) The following table is a summary of Creative Commons licenses. Complete the table by filling in the blanks [1] to [4] with the appropriate terms.

Mark	Condition	Content
	([1])	Display the title of the work and name of the creator.
	Non-commercial	Do not use for ([2]) purposes.
	([3])	Do not alter the original copyrighted work.
	([4])	Publish under the same combination of licenses as the original work.

(5) Choose one statement that correctly represents the conditions indicated by the Creative Commons license shown on the right from the options **A** to **D** below. Answer using the letters.



A Display the name of the creator and do not use the work for commercial purposes.

B Display the name of the creator and do not alter the original work.

C Do not use the work for commercial purposes and do not alter the original work.

D Do not use the work for commercial purposes. Also, if you modify the work, publish it under the same license as the original work.

Exercise

1 Answer the following questions.

(1) Choose the term that best fit into the blanks [1] to [3] from the options **A** to **D** below, and answer using the letters.

> If you want to use another person's copyrighted work, you must clarify the purpose and method of use, as well as the place where it will be published, and obtain permission from the copyright holder. However, usage is permitted without obtaining permission in cases such as ([1]) in educational institutions, reproduction for ([2]) use, and ([3]) from texts.

A Quotation **B** For-profit **C** Personal **D** Classes

(2) Choose the one that does not constitute copyright infringement from the options **A** to **D** below, and answer using the letters.

A I made a copy of a commercially purchased music CD and gave it to a friend.
B I listen to music by recording commercial music CDs that I have purchased onto my smartphone.
C I shared and disseminated on social media the audio data of a popular artist's song.
D I copied an illustration that is distributed for free and sold the copies at a low price.

(3) Choose all statements that correctly describe the method and rules of quotations from the options **A** to **D** below, and answer using the letters.

A There is a necessity to engage in quotation.
B You cannot quote without obtaining permission from the copyright holder.
C Do not alter quoted material without permission.
D The source is clearly specified.

(4) The following table is a summary of Creative Commons licenses. Complete the table by filling in the blanks [1] to [4] with the appropriate terms.

Mark	Condition	Content
	([1])	Display the title of the work and name of the creator.
	([2])	Do not use for commercial purposes.
	([3])	Do not alter the original copyrighted work.
	([4])	Publish under the same combination of licenses as the original work.

(5) When publishing a photo you took on a web page, you want to allow others to use it on the conditions that "the name of the photographer is displayed" and "the work is not used for commercial purposes." At this time, choose all the Creative Commons licenses that should be displayed in combination from the options **A** to **D** below, and answer using the letters.

A  **B**  **C**  **D** 